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All about geographical indications

December 9, 2023

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This article is written by [Shubhangi Sharma](#) and [Shriya Singh](#). It aims to discuss in detail the geographical indications. It covers its meaning, origin, international position as well as significant cases regarding it along with its types and importance.

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Introduction

A geographical indication is a type of intellectual property right that is basically used for product protection with regards to its geographical origin, and the idea behind it is that the qualities of that product are derived from the concerned place of production. As the geographical indication is usually closely tied to the cultural heritage and traditional methods of production of the particular region the product belongs to, geographical indication helps not only to preserve and promote these traditions but is also essential for maintaining cultural diversity and identity.

Let us study in detail the geographical indications and their importance.

What is geographical indication

A geographical indication is a sign used on products that has a specific geographical origin and includes the qualities or reputation of that origin. A geographical indication is given mainly to agricultural, natural, and manufactured handicrafts arising from a certain geographical area. Geographical indications (G.I.) are one of the forms of IPR which identifies a good as originating in the respective territory of the country, or a region or locality in that particular territory, where a given quality, reputation or other characteristic related to the good is essentially attributable to its geographical origin. The relationship between objects and place becomes so well known that any reference to that place is reminiscent of goods originating there and vice versa. It performs three functions:

- First, it identifies the goods as to the origin of a particular region or locality;
- Secondly, it suggests to consumers that goods come from a region where a given quality, reputation, or other characteristics of the goods are essentially attributed to their geographic origin;
- Third, they promote the goods of producers of a particular region. They suggest to the consumer that the goods come from this area where a given quality, reputation or other characteristics of goods are essentially attributable to the geographical region.

G.I. is a kind of sign used for goods that have a specific geographical origin and possess qualities or a reputation that are due to that particular place of origin. Basmati rice and Darjeeling tea are examples of G.I. from India. [Article 22 of the TRIPS Agreements](#) defines a geographical indication as a sign that is used on goods that have a specific geographical origin and which possess qualities, reputation or characteristics that are essentially attributable to that particular geographical place of origin.

As a result, India was implemented in 1999 when the TRIPS Agreement was incorporated as a member state of the Sui-Genis law for the protection of geographical Indication. The object of the [Geographical Indicators Goods \(Registration and Protection\) Act, 1999](#), has three folds:

- By specific laws governing the geographical Indication of goods in the country, which can adequately protect the interests of the producers of such goods,
- To exclude unauthorized persons from misuse of geographical signals protect consumers from fraud, and
- Promoting Indian geographical bearing goods in the export market.

A registered geographic sign prohibits in any way the use of a geographical insignia which indicates in the designation or representation of goods that such goods originate in a geographic area. For example, Basmati rice and Darjeeling tea are examples of G.I. from India. The connection between the goods and place becomes so much recognized that any reference to the place reminds those specific goods being produced there and vice-versa. Some of the Examples of Indian geographical indications which are registered in India are:

- Basmati rice
- Darjeeling tea
- Banaras Brocades and Sarees
- Coorg orange
- Phulkari
- Kolhapuri chappals
- Kangivaram sarees
- Agra Petha

Geographical Indication in India

In India, [Section 2 \(1\)\(g\)](#) of the [Geographical Indication of Goods \(Registration and Protection\) Act 1999](#), designs geographical indication in relation to goods to mean and identification which identifies such goods as agriculture goods, natural goods or manufactured goods as originating or manufactured in the territory of a country or a region or locality in that territory where a given quality reputation or other characteristics of such goods is essentially attributable to its geographical origin and in the case where such goods are manufactured goods, one of the activities of either the production or of processing or preparation of the goods concerned takes place in such territory, region or locality, as the case may be.

For the purpose of this provision, any name that is not the name of a country, region or locality of that country shall also be considered a geographical indication if it relates to a specific geographical area and is used upon or in relation to a particular goods originating from the country, region or locality, as the case may be.

Trademark and geographical indication

Both trademarks and geographical indications are distinctive symbols, and they both differentiate some products from others.

However, there are remarkable differences between the two-

BASIS
TRADEMARK
GEOGRAPHICAL INDICATION
Meaning and scope
A trademark is a sign that an individual trader or company uses to distinguish its own goods or services from the goods or services of its competitors. A geographical indication is used to show that certain products have a certain regional origin. A geographical indication must be available for use by all the products in that concerned region. **Origin**
A trademark arises from the creative genius of man. A geographical indication is not created; it is there in nature due to the existence of human and natural factors. **Social recognition before protection**
In the case of a trademark, social recognition must or must not already be there before the idea and need for its protection arise. For a geographical indication, social recognition is already there before the idea and need for protection come to light.

Types of geographical indication

Theoretically or otherwise, the geographical indications have been classified into four types, namely-

1. Quality-neutral geographical indications,
2. Qualified geographical indications,
3. Direct geographical indications, and

4. Indirect geographical indications.

Quality-neutral geographical indication

There is no apparent connection between the distinctive features of the products and the place of their origin for the quality-neutral geographical indications. It merely demonstrates that the product is made at the indicated location by the source indication.

Qualified geographical indication

The qualified geographical indications establish a link between the attributes or reputation of the products and the nation, area or place that they are concerned with. A single name is used to designate or identify these products. These are often referred to as applications of origin.

Direct geographical indication

The products of geographical indication tags for the direct geographical indications are denoted by the names of the geographical places they belong to.

For example, tea from Darjeeling is referred to as Darjeeling tea, and champagne from the place Champagne is famously known as champagne.

Indirect geographical indication

If the public at large believes that the products are identifying a certain geographical origin, the indirect geographical indications are termed “non-geographical names or symbols”.

For instance, consider the term “feta,” which has no geographical place in Greece but is yet claimed by Greece to be associated with a region and protected by geographical indication law.

Another example is the rice variety known as “Basmati,” which has no specific location in India. The Trade Agreement on Intellectual Property Rights covers “other signs of geographical significance, whether... composed of words, phrases, symbols or emblematic images,” in the event that indirect geographic indicators are recognised.

Functions of geographical indications

Geographical indications, being a form of intellectual property protection that is used to identify and promote products that originate from a specific geographical region, perform a range of economic and other functions that usually depend upon how the producer is using the geographical indications in consonance with the consumer’s view of them. The primary functions of geographical indication are as follows-

It provides for legal protection

Geographical indications are legally recognised and protected under various national and international laws as well as agreements such as [World Trade Organisation](#) agreements on trade-related aspects of intellectual property rights. Protection shows that the use of geographical indications is controlled and monitored, as they are essential for protecting the identity, quality and reputation of products associated with specific geographic regions, which benefit both the producers and the consumers.

What are the benefits of protection as a geographical indication

The research and practice communities in India have given geographic signals a great deal of attention. Having a product protected by geographical indicators may have advantages. Although the advantages will differ from nation to nation, using GIs might boost export revenue and positively impact rural development. Each must assess in particular if the compromises, if any, necessary in discussions to extend TRIPS recognition and protection are justified by the short- and long-term benefits, as well as its current and potential geographical indications and capacity to administer an extended system.

Currently, semi-processed goods like coffee and tea, processed meals like beverages, fruit marmalades, preserves, and sauces, and staples like rice and salt are all commonly used labels to highlight the GI connection between a food and a location. Whether used alone or in conjunction with trademarks, geographical indications, albeit less common than trademarks in terms of values and volumes processed and sold, have the potential to be very beneficial for small businesses and rural areas. Numerous foods with geographical indications are handmade, traditional, and from rural areas. They are produced by tiny or microbusinesses. These characteristics frequently increase their allure and cost, particularly when they are offered in export or domestic niche markets like gourmet or specialised markets. Furthermore, in many Indian regions, the effective application of geographical indicators may have a limited but favourable impact on farming, food processing, rural development, and export revenue. Rural towns could gain social and economic advantages by promoting their local cuisine.

The study's most significant conclusion is the unmistakable proof of the producers' increased disposable income during the post-geographic indicators era. The product's increasing demand pattern following the protection of intellectual property rights and product diversity may be the cause of the higher revenue trend. Thus, it can be concluded that providing this geographical indication with the proper legal protection would greatly benefit in preventing abuse and spurring economic development.

Geographical indication as an indicator of origin

Geographical indications serve as an identification of the product's origin or have some other connection to it. Terroir refers to the entirety of the local environment, encompassing terrain, soil composition, weather patterns, and expertise, which geographical indications refer to when they are tagged with any product.

A widely accepted hypothesis states that the geographical indications serve as a special combination of the origin and quality functions. They provide details about the product's geographical origin as well as non-geographic characteristics related to that origin. The idea of terroir serves as the foundation for combining these two roles.

“A relatively small area or surroundings whose geology, topography, microclimate, flora and other related factors bestow distinctive qualities to a product” is the narrowest definition of terroir. Every product ought to represent its location in an eminent manner. As a result, distinct products can be identified with one another and linked to their place of origin. There is no justification for referring to things from different regions using the same geographical term because they are distinct from one another.

Geographical indication acts as a producer's device

Geographical indications contribute to the preservation of product originality and quality. Uniform product quality is ensured by producers operating within the designated geographical area who frequently adhere to traditional or particular production processes and norms.

A producer should make an effort to set his products apart from those of other producers. It has always eluded manufacturers of highly commoditized goods, like agricultural products, to harness the power of branding. Geographical indications give producers a new or additional way to identify their goods as excellent and entice consumers to make additional purchases. For small-scale producers that cannot afford the substantial expenditures required to support a single brand, this might be quite important.

As long as the promotion and investment functions are adequately safeguarded, producers may use regional indications to support the prices of their products. Producers may capitalise on customer demand for diverse, high-quality products by using geographic indications to unlock value. This is why producers find geographic indications valuable.

It provides information to consumers

Geographical indications guarantee that items live up to expectations by suggesting attributes they possess or that consumers connect with them. The relevance of a geographical indicator is in the way the customer associates the name of the geographical place with attributes like flavour, quality, or other relevant features.

If there is no reciprocity or association between the geographical region and the quality attribute, then the geographic indication will be clearly worthless for the consumer. Information helps consumers make logical decisions. Obtaining information regarding the quality of a product that cannot be examined or evaluated before purchase is frequently challenging and time-consuming. You have to take risks. The product's source helps the customer recognise it and offers a range of subjective expectations regarding its quality and features. These expectations might be derived from advertisements, past usage, or even suggestions from others. Since certain items cannot be replicated elsewhere, it is imperative to prevent misleading indications in the interest of customers if a geographical indication conveys non-geographical traits developed from the product's geographical origin.

Consumers are shielded against the use of false or misleading labels by the information offered by registering a geographical indicator, which also gives them options for products and information to help them make decisions.

It helps in preventing misuse

Geographical indications guard against the unapproved use of a product's name, stopping third parties from falsely promoting goods as being from the same place of origin. This keeps customers from becoming confused and safeguards the original product's reputation.

It protects local cultures and traditions

Geographical indications contribute to the preservation of culture by preserving traditional production techniques, consumption patterns, and cultural identity. The protection of geographical indications begins with this function. Protection of geographical indications and related rules may only be warranted if the indicators truly serve their intended purposes. It is appropriate to use geographic indicators to preserve regional customs, national culture, and cultural variety. This is due to the fact that geographical markers, rather than encouraging innovation, reward producers who stick to the customs of the production location.

Geographical indicators protect national treasures from imminent extinction and also raise the marketing value of traditional artisan products. Products with regional designations can be "cultural," according to Broude, in three ways:

1. the production culture of it,
2. the consuming culture of it, or
3. as a component of cultural identity.

A product is granted protection against geographical indications not only because of its place of origin but also because it complies with certain requirements regarding production processes and content. These practices are frequently based on historical and social contexts and are not essential to the final product's features and attributes. The extinction of the practices would also mean the extinction of the related manufacturing culture. Thus, in order to preserve the historical and cultural integrity of production, geographical indication regulations are applied. However, a culture of consumption is necessary for the survival and appreciation of product traits and attributes. By giving customers precise information about the place of origin of items, we can preserve this culture of consumption. Products with geographic indications serve as cultural icons or components of cultural identity. They may stand for or symbolise a nation or an area.

Geographical indicators, then, serve as a safeguard against the homogeneity that results from globalisation and serve as the keepers of cultural identity. Products covered by registered geographical indications are known for their quality due to a combination of human and environmental variables, including regionally specific manufacturing techniques and natural elements like climate. The ageing process of Roquefort cheese in the caves in the Roquefort district of France serves as an example of how a product's climate can alter its quality.

It promotes rural development as well as sustainability

Products with a geographic indication have a significant impact on producers in developing nations. The fact that these traditional goods and activities are tied to social structures is one of their salient features. For their food, security, and health, many people in underdeveloped nations rely on these traditional practices. For the impoverished in many nations, traditional medicine offers the only affordable option.

A good indicator should be protected because of its touch of rural and traditional attributes. Maintaining a high standard of quality is essential to building a solid reputation and, frequently, a monopoly that allows you to charge more. Geographical indications can thus support significant corporate interests by helping to promote a region's products.

Rural places gain extra impetus from geographic indications. When a geographical indication is granted, the right holders will have the chance to profit financially from it as well as the ability to keep out unauthorised users by creating a barrier to entry in a certain market niche.

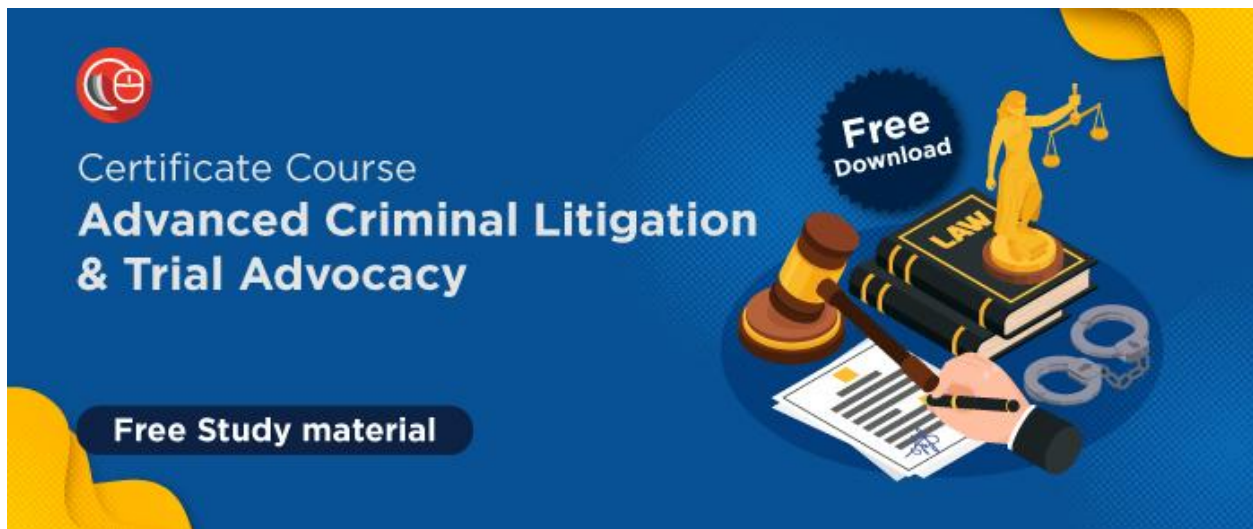
These characteristics will then translate into a fair allocation of expenses and advantages for the communities and holders of geographical indications. Intergenerational fairness will be aided by the subsequent generation of incentives stemming from economic motivations

to support and maintain traditional methods and know-how. The society at large and the holders of geographical indications will also profit from other indirect advantages, such as the generation of jobs, the preservation of people in rural regions, and the potential for tourism.

Local producers and the regional economy are anticipated to gain from a few fundamental characteristics of a geographical indicator. They are listed below-

- Geographical indications are preserved indefinitely as long as local knowledge is maintained and they are kept from becoming generic. This indicates that the primary purpose for which marketing expenses are required is to inform customers about upcoming product advancements.
- The right is not given to a single producer but to a group of producers as a whole. As a result, the entire community will gain, which could boost the local economy.
- Geographical indicators, in contrast to other intellectual properties, are recognised rather than generated; that is, investments are tied only to building a product's reputation, whereas other intellectual properties are related to the process of manufacturing items initially.

It provides a competitive advantage



Products with geographical indications eventually enjoy a competitive advantage in the market because they are associated with a particular region's quality, heritage and unique characteristics.

History of geographical indication

Governments are protecting trade names and trademarks used in the context of food products identified from a particular region, which until the late nineteenth century, laws were used or passed against inaccurate trade descriptions, which Usually protect against suggestions that have a certain origin, quality, of the product. , or association when it does not. In such cases, the competitive freedom that arises from the grant of a monopoly of use on a geographic indication is justified by governments for consumer protection benefits or producer protection benefits.

One of the first G.I. systems used in France since the early part of the twentieth century is known as the Appellate d'Orgine Controloli (AOC). Items which meet geographic origin and quality standards can be approved with a stamp of government that serves as the official certification of the product's origin and standards to the consumer. Examples of products that have such 'appellation of origin' include Gruyère cheese (from Switzerland) and several French wines.

Among the major developing economies, India has a quick and efficient G I tagging mechanism.

Geographical indications have been associated strongly with the concept of Terrero and as a unit with Europe, where there is an existence of a tradition of linking certain food products with particular regions and their origin. India has put in place a Sui Generis system of legislation for G.I. security as well as G.I. protection in particular. "Sui Generis" can be termed as of its own kind and involves laws which are recognized nationally. The laws relating to the preservation of G.I.s in India are the 'Geographical Indications (Registration and Protection) Act, 1999' (G.I. Act), and the 'Geographical Indications (Registration and Protection of Goods) Rules, 2002 (G.I. Rules). India enacted its G.I. law for the country to enforce national intellectual property laws in compliance with India's obligations under TRIPS. Under the G.I. Act, under the G.I. Act, since 15 September 2003, the Central Government has established a Geographical Indication Registry in Chennai, with the jurisdiction of Pan-India, where rights holders can register their G.I.

International stance on geographical indication

Since ancient times, geographical indications have been the most common and popular assignments for specific items. Before the coming of agreement on the [Trade-related Aspects of Intellectual Property Rights](#), there were three International multilateral agreements which were working on the issue of protection of geographical indication, namely –

1. The Paris Convention
2. The Madrid Agreement

3. The Lisbon agreement

The Paris Convention

The [Paris Convention](#) represented 1883 industrial property security, which limited bogus and deceitful indications through more extensive and broad measures. It defined geographical indicators as indications of sources or appellations of origin.

The appellation of origin is a special kind of geographical indication that has been mentioned under this convention but has not been defined.

An indication of source is any expression or sign that indicates that a product or service originates in a country, origin or specific place where it has originated. For example, made in India or champagne.

The Madrid Agreement

The [Madrid Agreement](#) for the Repression of False and Deceptive Indications of Sources on Goods of 1889 expressly targeted its smothering and obstructing weakening of geographical indications into non-exclusive terms. It provided better protection for geographical indications as it prohibited misleading indications along with false indications.

The Lisbon Agreement

The [Lisbon Agreement](#) of 1958 provides a strong insurance policy intercontinental in-role mint arrangement in geographical science. It ensured appellation of origin guarantee. It offered stronger protection for appellations.

The characteristics of the above-mentioned three conventions, coupled with a few additional ones, safeguard the trade-related aspects of intellectual property rights agreements against geographical indications in the world.

TRIPS and Geographic Indication

Member states of the Trade-related Aspects of Intellectual Property Rights treaty are required to provide the mechanism that enables interested parties to prevent untruthful and misleading uses of geographical indication.

For instance, tea growers in Nepal may not call their tea Darjeeling tea or Kangra tea, even if the tea grown is genetically identical.

The literal truth is not a defence if geographical indication misleads the public. [Article 23](#) of the trade-related aspects of intellectual property provides for additional protection for a

geographical indication of wines and spirits. It includes three important elements, which are-

- The provision in the legality means for interested parties to prevent the use of a geographical indication identifying wines and spirits not originating in the place indicated by the geographical indication.
- The possibility to refuse or invalidate the registration of a trademark for wines or spirits that contains or consists of a geographical indication identifying wines and spirits is at the request of an interested party.
- There would be a possibility to call for future negotiations aimed at increasing protection for individual geographical indications for wine and spirits.

[Article 24](#) of the trade-related aspects of intellectual property rights provides for an exception and expressly reserves the right to use geographical indications that are identical with the term customary in common language.

The name has become a common or generic term. For instance, cheddar now refers to a particular type of cheese not necessarily made in Cheddar of the United Kingdoms.

What role does WIPO play in protecting G.I.

The Uruguay Round of GATT negotiations began in 1986, at the same time as India's development policy-making process was in a watershed. As a paradigm shift in its policy by the time India launched its large-scale economic reform package in 1991, the Uruguay Round of negotiations were going well, paving the way for Margakesh in 1994 and world trade. Organization established. The NDA remained a cautious and somewhat dysfunctional player during the early years of the Uruguay Round of negotiations, given its longstanding legacy of growth strategy and inward protectionist trade policy.

However, in Doha, India wanted to patronize other products beyond wine and spirits under the Doha Geographical Indication (G.I.). Many countries wanted this high level of security to be seen as a negotiation for other products, as they see a higher level of security to improve their products by separating their products from their competitors more effectively and They are "belittling" other countries. Conditions. Some others opposed the move, and the debate includes the question of whether the Doha Declaration provides a mandate for negotiations. Those opposing the expansion argue that the current (Article 22) level of protection is sufficient. They warn that providing augmented security will be a burden and disrupt existing legitimate marketing practices. India, along with a host of other similar countries, pressed 'expand the scope of Article 23' to cover all categories of goods. However, countries such as the United States, Australia, New Zealand, Canada, Argentina,

Chile, Guatemala and Uruguay are strongly opposed to any 'expansion'. The 'expansion' issue formed an integral part of the Doha Work Program (2001). However, as a result of the wide divergence of views among members of the World Trade Organization, there has not been much progress in negotiations, and implementation remains an 'outstanding implementation issue'.

Need for geographical indications

Given its commercial potential, G.I.'s legal protection assumes great importance. Without proper legal protection, competitors who have no legitimate authority over the G.I. can ride free on its reputation. Such unfair trade practices lead to loss of revenue for G.I. right holders and also confuse consumers. Furthermore, such practices may ultimately disrupt the goodwill and reputation associated with a geographical indication.

What is a "generic" geographical indication

If a geographical term is used as a designation of a type of product rather than an indication of the place of origin of that product, the term does not serve as a geographical indication. Where a certain country has occurred at a certain time, that country may feel that consumers have understood a geographical term that once stood for the origin of the product.

Benefits of geographical indications

The organizations or companies who register their geographical indications enjoy various advantages from the registration, including:

1. Registered geographical indications have the exclusive right to access or use G.I.'s products during the business.
2. Authorized users enjoy the right to sue for infringement.
3. It provides legal protection to geographical signs in India.
4. Prevents unauthorized use of registered geographical indications by others.
5. It provides legal protection to Indian geographical signals which in turn promotes exports.
6. It promotes the economic prosperity of producers of goods produced in a geographical area.
7. A registered owner can also approach for legal protection in other WTO member countries.

8. It provides legal protection to the respective goods in domestic as well as international markets.

What are the subject matters which are not registrable under geographical indication

For registration, the indications should fall within the purview of [Section 2\(1\) of the Geographical Indication Act, 1999](#). When this happens, it must also meet the provisions of Section 9, which prohibits the registration of a geographical indication.

- The use of which would cause confusion or confusion; or
- The use of which shall be contrary to the time of enactment of any law; or
- Which includes or is libellous or indecent matter; or
- Which is likely to involve or cause force injury at any time; Religious sensitivity of any class or class of citizens of India; or
- Which would otherwise be destroyed for protection in a court; or
- Those determined to indicate common names or objects and, therefore, to be preserved in their country of origin or which are not in use in that country; or
- However, this is actually true as the area or locality in which the goods originate but misrepresents the individuals that the goods originate in another area, region or locality as the case may be.

Rights granted to the holders

- Right to sue: The exclusive rights have been granted to the person who is protected under the Geographical Indication Act and, therefore, can be inherited, gifted, sold, licensed, entrusted or mortgaged. The holder of geographical Indication has a type of property that he can use subject to certain conditions and take legal action against a person who uses his invention without his consent. Does and can receive compensation against real property.
- The right to grant license to others: The holder has the right to transfer a license or grant a license or enter into any other arrangement for consideration regarding their product. A license or assignment must be given in writing and registered with the Registrar of geographic indications, for it to be valid and legitimate.
- Right to exploit: Authorize user exclusive right to use geographic Indication with respect to geographic goods for which the geographic Indication is registered.

- Right to get reliefs: Registered Proprietors and authorized Users or Users have the right to obtain relief in relation to the violation of such geographical Indication.

Who can apply for geographical indication registration

Any person, manufacturer, organization or authority established by or under the law may apply for the registration of Geographical Indication of their product.

1. The respective Applicant should represent the interests of producers.
2. The Application should be in the prescribed form in writing, which mentions each and every detail about the product.
3. The Application should be addressed to the Registrar of Geographical Indicators along with the prescribed fee for the registration of the product.

Whom to apply

The Application must be submitted to the Registrar under the Act, the Controller of Patents, Designs and Trademarks who are appointed under [sub-section \(1\) of Section 3 of the Trademarks Act 1999](#) shall be the Registrar of Geographical Indications. He shall be assisted by the respective number of the officers, who are appointed by the central government as they may think fit.

A full modern patent office and the country's first geographical indication (G.I.) registry in Chennai is a really good step in this field. The Registry will further supplement this by meeting the requirements outlined in the Act. Every application should be filed in the Office Registry of Geographical Indication within the territorial boundaries of the country or region or locality in the country where the geographical indications are situated.

Whom to consider an authorized user

The authorized user is:

- The manufacturer of the goods can apply for registration as an authorized user.
- It must be in relation to a registered geographical indication.
- He should apply in writing with the prescribed fee.

Whom to consider as the registered proprietor of a geographical indication

The registered proprietors of Geographical Indications are:

- A person, manufacturer, organization or association established under law or legislation may be a registered owner.

- Their name must be entered in the Register of Geographical Indicators as there are registered owners for the Geographical Indication.

Requirement of registration

Under the Indian Act, no protection is conferred on an unregistered geographical indication. Consequently, the proprietor of an unregistrative geographical indication has no remedy against the infringement of his mark. So, one can conclude that the registration of geographical indications is mandatory under the laws of India.

However, passing off action by the original proprietor of a mark has not been barred.

Tirupati Laddu Controversy

In the Tirupati Laddu controversy, public interest litigation was filed before the Madras High Court against the geographical indication tag for the Tirupati Laddu.

That petition was dismissed on the ground that an alternative and efficacious forum was available for the adjudication of such disputes, and hence, the public interest litigation was dismissed with directions to the petitioner to approach the appropriate authority for the same.

Under the Geographical Indication Act, such a petition could have been filed either before the geographical indication registry or the [Intellectual Property Appellate Board](#).

Mr. R.S. Praveen Raj, a resident of Thiruvananthapuram and a scientist at [the National Institute of Interdisciplinary Science and Technology](#), made a play against the geographical indication tag of laddus.

The petition raised certain issues fundamental to the nature of geographical indication protection on the grounds of violation of [Section 11\(1\)](#), [Section 9\(a\)](#) as the registration is likely to deceive consumers, and [Section 9\(d\)](#) as the registration is likely to hurt the religious susceptibilities of the community in India.

It was rejected by the geographical indication registry of Chennai, stating that the applicant failed to prove locus sandi and interest in the registered goods.

Jamnagar Petrol

[Reliance Industries Limited](#) had filed the geographical indication application for Krishna Godavari gas and Jamnagar petrol, diesel and LPG.

The application sought authorised usage of the name Jamnagar LPG for oil, petroleum and diesel. Though the application was published in the journal, it was abandoned midway by Reliance Industries Limited in the wake of two separate oppositions to it.

Section 11(2) of the Geographical Indication Act mandates an application to contain a statement that proves or establishes that the geographical indication to designate the goods originating from the concerned region in respect of specific quality, reputation and other characteristics that are due exclusively or essentially to the geographical environment with its inherent nature and the human factor.

Under specification, Reliance Industries Limited stated that the required standards are met by its petrol, fuel, diesel and LPG. There was no mention of any unique properties possessed by the goods in the application by Reliance Industries Limited except compliance with the standards of the [International Organization of Standardization](#).

Basmati Rice

In September 1997, the United States granted a patent to [Ricetec Incorporation](#), which is a United States multinational company, for new lines and grains in the name of basmati rice.

This was objected to by two Indian non-government organizations. The [Centre for Scientific and Industrial Research](#) also objected to it. All of them called for a revision of United States rights standards to specify that the term basmati can be used only for rice grown in India and Pakistan and Jasmine for Thai rice.

The Indian government, after putting together the evidence, officially challenged the patent in June 2000.

The contention of Ricetec was that the name basmati is not a name of geographical rice, and hence, it is not qualified for protection under the trade-related aspect of the intellectual property rights agreement.

However, it was proved that though the name basmati is not a name for any geographical area, it's still inextricably linked to its region of origin, that is, India.

Ricetec also contended that basmati is a generic name and has fallen into the public domain.

In 2000, after litigation and hearings, the [United States Patent Trademark Office](#) granted patents only to a few varieties instead of the sweeping claim of new lines and grains.

It was against this backdrop that the Geographical Indication Act of India was passed in 1999.

Darjeeling Tea

[Tea Board](#), a statutory authority of the [Government of India](#) established in 1953 under [the Tea Act of 1953](#) for the purpose of controlling the Indian tea industry, owns the geographical

indication for Darjeeling tea, which is the tea grown in 87 gardens in the district of Darjeeling.

The keyboard has fought more than 15 cases against the infringement and misuse of Darjeeling tea.

The board was successful in seeking rejection of the trademark application for Darjeeling Nouveau in the name of the [Republic of Tea](#), United States of America, on the basis of its geographical certification mark for Darjeeling word and logo.

The opposition had been filed by the tea board before the [Trademark Trial and Appeal Board](#).

The Trademark Trial and Appeal Board held that the Republic of Tea had not proved that consumers view Darjeeling tea as a generic type as opposed to tea grown in the Darjeeling region of India.

It also recognised the tea board's continuing effort to maintain control of the mark and protect its value as a geographical indication.

The trade mark trial and appeal board held that the regulations and licensing program put in place by the tea board constitute adequate provision for control.

In its decision, the [Court of Appeal, Paris](#), held that Mr. Dusong's mark of Darjeeling with a cattle device impairs the geographical indication of Darjeeling and is prejudicial to the tea board's interest in the same. Accordingly, the impugned mark was nullified.

Registration process of geographical indications

Step 1: Application filing

Please check if the Indication falls within the definition of [Section 2\(1\)\(e\) of the GI Act](#).

The association of individuals or producers or any association or authority should represent the interest of the producers of the goods concerned and file an affidavit as to how the Applicant claims to represent their respective interests.

- Applications must be made in triplicate.
- The Application must be signed by the Applicant or his agent and must be accompanied by a description of the case.
- Describe the special features and how those standards are maintained.
- Three certified copies of GI-related field maps.

- Description of the inspection structure if there is an area for regulating the use of G.I.
- Provide details of all applicants with the address. If there are a large number of manufacturers, then collective reference applications for all producers of goods and G.I. should be made. If registered, it should be indicated accordingly in the register. The Application must be sent to a respective address in India.

Steps 2 and 3: Preliminary Examination and Examination

- The examiner will check the Application for any deficiencies.
- The Applicant should take measures in this regard within one month of communication.
- The content of the case description is evaluated by an advisory group of experts who will master the subject.
- Furnished will ascertain the correctness of the description.
- After that, an examination report will be issued.

Step 4: Show cause notice

- If the Registrar has any objection to the Application, he shall file such objection.
- Applicant must reply within two months or apply for a hearing.
- The decision will be duly communicated. If the Applicant wants to appeal, he can request it within a month.
- The Registrar also has the right to withdraw an application, if it is mistakenly accepted, after giving it on the occasion of a hearing.

Step 5: Publication in Geographical Indication Journal

Every Application, within three months of acceptance, will be published in the Geographical Indications Journal.

Step 6: Resist Registration

- Any person opposing the G.I. application, published in the journal, can file a notice of protest within three months (another month upon request which is to be filed before three months).
- The Registrar will provide a copy of the notice to the Applicant.

- Within two months, the Applicant will send a copy of the counter statement.
- If he does not do so, he is believed to have dropped his Application. Where a counter-claim has been filed, the Registrar will serve a copy on the person giving notice of the protest.
- Thereafter, both parties will lead their respective evidence through affidavits and supporting documents.
- After this, the date of hearing of the case will be fixed.

Step 7: Registration of Application

- Where an application for G.I. has been accepted, the Registrar will register the Geographical Indication. If the date of filing the Application after being registered will be considered as the date of registration.
- The Registrar will issue a certificate to the Applicant with the seal of the Geographical Indicators Registry.

Step 8: Renewal of Application

A registered G.I. will be valid for 10 years and can be renewed on payment of a renewal fee.

Step 9: Additional Security for Notified Goods

An application can be made to the Registrar for respective goods which are notified by the Central Government for additional protection for the registration of geographical Indication in Form GI-9, there will be three copies of the case details and three copies of the issued notification.

The Application will be made jointly by the registered owner of Geographical Indication in India and jointly by all the producers of Geographical Indication.

Step 10: Appeal

Any person who is aggrieved by an order or decision may prefer an appeal to the Intellectual Property Appellate Board (IPAB) within three months.

Validity of registration

The Registrar's certificate of registration serves as initial proof that the geographical indication was properly registered. Without further evidence of original production, it is admissible as sole evidence in all courts and before the Appellate Board.

Effect of registration

The Geographical Indications Act does not require the registration of geographical indications. Better legal protection against violations of registered geographical indicators is provided to authorised users by registration.

However, no infringement proceedings may be initiated to stop infringement or to recover damages in the case of unregistered geographical indications. No one will have the exclusive right to use any of those geographical indicators; instead, two or more approved users will have co-equal rights against other parties. The following rights come with registration-

- Subject to the restrictions and conditions associated with registration, registration grants the exclusive right to use the registered geographical indicator with respect to the goods to which it refers. There are co-equal rights for two or more co-users.
- Additionally, registration grants the right to infringement remedies.
- If a passing-off action has already been launched, its scope will be expanded as a result of the registration of a geographic indication while the case is pending.

Registration of Geographical Indication as a Trade Mark

Geographical indicators cannot be registered as trade marks by the Registrar of Trade Marks because they could mislead or confuse people regarding the genuine location of origin. The Geographical Indication Act of 1999, [Section 25](#), renders a trade mark's registration void suo moto or upon the request of a concerned person. This Act's Section 25 forbids anybody from using a public property that is in the form of a geographical indicator as a trade mark that could cause confusion in the marketplace.

However, trademarks comprising geographical indications that have been legitimately applied for or registered prior to the effective date of this Act are protected under [Section 26](#) of the Geographical Indication Act, 1999.

In the case of [*Tata Groups Mount Everest Mineral Water Ltd. v. Bisleri, Mount Everest Mineral Water \(2010\)*](#), the registered owner of the trade mark "Himalaya", asked the Delhi High Court to issue an interim injunction prohibiting Bisleri from using the mark on its packaging.

Bisleri submitted a request to the Intellectual Property Appellate Board to have the Himalaya trade mark registration revoked. Because the Geographical Indication Act prohibits any private entity from registering a geographical term as a trade mark and the word "Himalaya" refers to a mountain range, Bisleri argued that it cannot be registered as a trade mark.

The Intellectual Property Appellate Board stated in its ruling that there would be a requirement placed on registration, stating that it does not grant the sole right to use the word “Himalayan” or the device depicting a mountain and that the term should only be applied to water that originates from the Himalayan mountain. The highest authority, the Intellectual Property Appellate Board, stated that no corporation is granted the exclusive right to use the term “Himalayan” as a trade mark for its products just because it was registered.

Infringement of geographical indication

A registered geographical indication is violated by a person who is not a registered proprietor or authorized user who uses such a sign on the goods or suggests that such goods originate in another geographic area, which confuses someone other than the actual place of goods public. A geographical indication of the trademark also infringes upon any use that constitutes an act of “unfair competition”, a detailed [explanation of 1 and 2 of Section 2\(b\)](#). This provision seeks to give effect to [Article 22\(2\)\(b\) of the TRIPS Agreement](#), which requires members to “provide legal means for interested parties to prevent any use that the Article 10bis of the Paris Convention (1967). A geographical indication is also violated by a person who is not a registered proprietor or authorized user, who uses another geographical indication for the goods, which is actually true as to the region, or locality from where the goods originated and publicly misrepresentation that goods originate in a region, or a locality to which such registered geographical indicators belong.

Article 22 (4) of the TRIPS Agreement states that the preservation of the geographical Indication of a trademark must be enforced even if the G.I. “is truly true as to the area, region, or locality in which the goods are in another territory” is generated “.

When someone uses a registered geographical indicator for which they are not legally permitted to do so, that use is considered an infringement. The use of a registered geographical indication in any way to indicate or suggest that goods originate in a location other than their true origin or to present goods in a way that misleadingly directs consumers towards that location constitutes infringement by an unauthorised user.

Therefore, it is illegal to use a registered geographical indication if someone-

- uses the product’s geographic indicator to suggest in a way that deceives the public that the items are made somewhere other than where they really originate,
- makes use of the geographic indication in a way that would be considered unfair competition,

- uses a different geographical indication for the commodities in a way that deceives the public into believing that the items are made in the area, region, or place that is associated with the registered geographical indication.

The rights holder must provide proof in the complaint that-

- The geographical indication of the rights holder is being used in connection with goods in an alleged infringement, which may cause confusion among the public as to where the infringing goods originated. The alleged infringement involves a mark that is identical to or similar to the geographical indication of the rights holder.
- The illegal act infringed upon the right holder's exclusive use of rights, resulting in financial loss for the right holder or damaging the right holder's goodwill and reputation.

Upon becoming aware of any infringement, the rights holder may send a cease and desist notification to safeguard its geographical mark against unapproved usage. After that, the rights owners may choose to file a criminal or civil lawsuit against the infringer, depending on the infringer's response.

Remedies for infringement of geographical indication

Remedies relating to infringement of geographical indications are similar to remedies related to trademark infringement. Similarly, under the (Indian) Geographical Indicators Goods (Registration and Protection) Act, 1999, falsification of a geographical indication. Remedies which are available for conservation of geographical indications may be broadly classified into two categories:

(i) Civil remedies

- Injunction

Injunctions include temporary injunction and permanent injunction. An injunction is granted for the protection of violations of related items, documents or other evidence in respect of the subject of the suit. An injunction is granted for restricting the defendant from disposing of or dealing with his products which may adversely affect plaintiffs' ability to recover damages, costs or other pecuniary remedies which may be finally awarded to the plaintiff as compensation of damage. The aforesaid remedy of injunction is more effective and can prevent greater harm to the plaintiff. Or other peculiar remedies that may eventually be given to the plaintiff.

- Damages

The remedy of damages or account of profits in the form of compensatory damages is available to prevent infringers from infringement. Damages (other than nominal losses) or accounts of profits may be ruled out Where the defendant satisfied the court that he was unaware and there was no reasonable basis for that Assuming that the plaintiff's geographical Indication was registered when he was engaged in using it; And when he became aware of the existence and nature of the geographical Indication, he stopped using it.

- Delivery of the infringing labels and indications containing products

It is in the court's discretion to order the infringer to deliver up infringing labels and indications for destruction by taking relevant circumstances into consideration the court may or may not order for such remedy. All the mentioned remedies are also available for the action of passing off. The actions of Passing off are initiated against the infringement of unregistered geographical indications.

(ii) Criminal Treatment.

Criminal remedies are more effective as compared to civil remedies because the former can be disposed of quickly. Pendency of civil suits does not justify a stay of the criminal proceedings which involve the same question. Criminal proceedings directly attack the violator's honour and social status In some cases he comes forward for the Settlement of the matter out of court to save their reputation. Chapter VIII of the Act deals with offences and punishment for such crimes. The Act has penal provisions for violation of various provisions related to Geographical indications which are discussed below:

- Falsifying and incorrectly applying geographical indications to the goods.
- Selling goods to which false geographical indications apply.
- Misrepresentation of a geographical indication in registered form.
- Improperly describes a place of geographically connected business indication Registry.
- Falsification of entries in the register.

The punishment granted for the infringement offences varies from six months to three years imprisonment and a fine of not less than rupees fifty thousand but may extend to rupees two lakh. However, the court for adequate and special reasons in writing may grant lesser punishment.

Cases

Banganapalle Mango

‘King of Fruits’ means mangoes from Banganapalle received a G.I. tag in the year 2017. The government-fixed logo features a yellow-coloured shiny fruit around which the tagline says “Banglapple Mango from Andhra Pradesh,” showing farmers with images of a man and a woman. From now on anyone has to apply to become the first authorized user to sell or produce and this will require a No Objection Certificate (NOC) from the Commissioner of Horticulture Development Agency, Government of Andhra Pradesh, Department of Horticulture.

The fruit is also known by many types of sages such as Beneshan, Banahan, Benishan, Chapati, Safeda, Banganapalli, Banginapalli, Banganapalle, etc. The main attraction of the fruit is that it can maintain its quality in cold storage for three months. Documents submitted to the Registry stated that ‘the prominent feature of Banganapel mangoes is that they have very light spots on their skin, stones are diagonal in shape and have very thin seeds, which have sparse and soft fibres.

The government also called the original centre of Kurnool district, which includes Nandyal Mandal in Banganapalle, Penam and Telangana and Khammam, Mahbubnagar, Rangareddy, Medak, and Adilabad districts. According to an affidavit furnished in 2011, the then Commissioner of Andhra Pradesh, Rani Kumudini said that about 7,68,250 families were involved in the production of Banganapalle mangoes. An estimated 24.35 lakh metric tons of mangoes were grown every year in Andhra Pradesh, and around 5,500 tons of Banganpal mangoes were exported annually to countries like the U.S., U.K., Japan and the Gulf countries.

Banglar Rasogolla v. Odisha Rasagola (2017)

In November [2017](#), the West Bengal State Food Processing and Horticulture Development Corporation Limited registered G.I. as Ras Banglar Rasogola. It was reported that Bengal won the dormant war between Odisha and Bengal, which would own the famous dessert. The legal battle for G.I. registration started when objections to G.I. registration were lodged, and it was said that this famous dessert originated at Jagannath temple in Puri, Odisha. An application to remove the registration of G.I. status was filed in February 2018. Meanwhile, the G.I. Registry in July notified that Odisha registered G.I. as ‘Odisha Rasgola’, after which several reports were released. Odisha did not give up in the race but won one. It is very important to note that the G.I. registry has not registered the word all Rasogola / Rasgola ‘. It has prefixed two words specifically for the G.I. tag, one is ‘Banglar’, and the other is ‘Odisha’. To say that ‘rasogola / rasgola’ is a general term, which any person can use in his trade and business. Thus, as far as the law is concerned, neither of the two states has a

monopoly on the word 'Rasogola / Rasola'. Therefore, it is free to sell sweets to anyone in the trade as Rasgulla / Rasgola or any other synonym. What is prohibited is the use of the words "Odisha rasgola" and "Benglar rosogola" by anyone other than authorized users 'under the law.

Geographical indications as a tool for economic development

The ramifications of geographical indications for goods for producers in developing countries are substantial. The connection between these traditional goods and activities and community involvement is one of their key features. These kinds of traditional activities are essential to the health and food security of millions of people living in poor nations. For those in need, traditional medicines may offer the only accessible, cost-effective treatment. Any trade benefit derived from the geographical indications classification is essentially pro-poor, given that geographical indications typically rely on products like agriculture, fishery, handicrafts, and artisanal goods. This is in contrast to other intellectual property rights, such as trademarks and patents, where the majority of the beneficiaries are wealthy individuals.

By bringing in more money and job possibilities locally, improved geographical indications, protection and marketing could have a direct impact on lowering absolute poverty. As a result, geographical indications can greatly advance human development and have a role to play in lowering poverty vulnerability.

Furthermore, the local producers and the surrounding economy stand to gain from a few fundamental geographical indication characteristics. Below are their details-

1. First, as long as local knowledge is maintained and the indication is kept from becoming generic, geographical indications are retained indefinitely and without time restriction. This indicates that the primary purpose for which marketing expenses are required is to inform customers about upcoming product advancements.
2. Secondly, the entitlement is bestowed upon a group of producers rather than a single producer. As a result, everyone in the community will gain, which could boost the local economy.
3. Third, geographical indications, in contrast to patents and copyrights, are recognised rather than created, meaning that investments are limited to enhancing the reputation of an already-existing product, whereas patents and copyrights are associated with the creation of new items.

Through its reputation as a reliable source of income, geographical indications certification lessens the vulnerability of rural impoverished people to poverty, which in turn discourages migration from rural to urban areas by keeping rural farmers on their farms.

This has two important ramifications, which are as under-

1. First, the indigenous knowledge of the place does not disappear; rather, it develops into a more refined form, and
2. Second, the migratory rate decline lessens the strain on metropolitan centers, which are frequently overcrowded in developing nations.

Additionally, the geographical indications might promote tourism in the area. The geographic location and geographical indications of goods may interact in both directions. In a sense, the environment in which geographical indications of goods were produced may be responsible for some of their quality attributes. In addition, the geographical indications' widespread appeal fosters a positive perception of the area, which supports the growth of the tourism industry, which in turn supports neighborhood businesses and community development.

European Union and Indian Free Trade Agreement vis-a-vis geographical indication

The [Free Trade Agreement](#) was to be entered into by the [European Commission](#) to regulate issues such as competition policy, the rights of foreign investors, open government purchasing practices as well as environmental social and Human Rights clauses.

However, sharp differences arose with respect to intellectual property rights, competition, agriculture, public procurement, market access and transparency.

For instance, a concern raised by [Amul](#) in 2013 was that it was feared whether the reduction in import duties would enable the European Union to dump subsidized products in the Indian market as the European Union did not allow the import of Indian dairy products under its strict sanitary standards, which are suspected to be nothing but a non-tariff barrier.

Conclusion

From the above case, we can conclude that a registered G.I. tag prohibits the holder from using the registered mark of G.I. or its name in any product which is similar to or misleading the registered product. It is possible. It may not be the same as a registered product, but it may have a registered name. Since the adoption of the TRIPS Agreement, there has been increased awareness of the need for adequate protection of geographic signals for all products. In addition, the negotiations by the World Trade Organization in the field of

industrial and agricultural products demonstrate the increasing importance of increasing the level of conservation of geographical signals for wines and spirits for all products. Nations have to understand the fact that protection for G.I.s is best provided under national laws because it is not the provisions of the treaty but the actual national laws that provide protection in relation to G.I.s. Such protection is an invaluable marketing tool and an added value for exports because it increases the likelihood of market access for such goods. The G.I. tag is an essential component for creating and maintaining abstracts and originality of the product of certain essentials and characteristics. India is not far behind in legally pursuing this aspect of intellectual property.

Frequently Asked Questions (FAQs) (New heading)

What is the appellation of origin?

The term appellation of origin has been understood as the geographical name of a country, region or locality that serves to designate a product originating there with regards to the quality and characteristics it exclusively or essentially has from the geographical environment, which is inclusive of natural and human factors.

What is passing off?

Whenever a case of false representation arises, it tends to deceive customers into believing that someone else is the goods and services that they are providing and not theirs but of the one who is responsible for making such representation. There is a remedy available under such circumstances, known as passing off.

In order to prove passing off, one needs to fulfill three essential conditions-

1. Goodwill
2. False or misrepresentation
3. Injury or damage

What is the neo-classical model theory?

According to neoclassical growth theory, different labor and capital inputs into the production function lead to short-term equilibrium. The theory also contends that technological advancements are necessary for economic growth and that technological change has a significant impact on economies.

According to neoclassical growth theory, an economy can only grow if three things happen. These three are stated under

1. technology,

2. capital, and
3. labor.

Does Kancheepuram silk enjoy the status of a geographical indication?

The Kancheepuram region of Tamil Nadu, India, is well-known worldwide for its silk products, and this is where the silk is created. Registration was used to seek protection for Kancheepuram silk as a handicraft.

This silk's reputation has been shaped by its high caliber and expert craftsmanship. Heavy silk and gold fabric are used to weave Kanchipuram sarees. In order to stop the use of the brand name Kancheepuram silk for other silk products made outside of Kancheepuram, the geographical indicators registry registered Kancheepuram silks as a geographical indication in 2005–06.

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